

HOUSE No. 2916

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to survivor's benefits for the spouses of retired state troopers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 2916

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 2916) of Paul McMurtry relative to survivor benefits for the spouses of retired state troopers. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4248 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to survivor's benefits for the spouses of retired state troopers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 32 of the General Laws is hereby amended by inserting after section 12B the
2 following section:-

3 Section 12C. Notwithstanding section 12, if a former member of the uniformed division
4 of the state police who is a member inactive as a result of their retirement dies and leaves a
5 spouse to whom such member has been married for at least 1 year and with whom such member
6 was living at the time of the death of such member, or who the board finds had been living apart
7 from said member for justifiable cause other than desertion or moral turpitude on the part of such
8 spouse who is eligible to receive a member-survivor allowance under the provisions of option (d)
9 subdivision (2) of section 12, such surviving spouse shall receive a lifetime, monthly allowance
10 equal to the amount they would receive if the deceased member had, upon retirement, elected

11 option (c) of said subdivision (2) of said section 12 and nominated their spouse as their sole
12 surviving eligible beneficiary; provided, however, that the retirement board shall withhold from
13 each payment made to such surviving spouse during the first year of such payments, such an
14 amount, in equal increments, as is necessary to account for the difference in the total amount the
15 deceased member received pursuant to whichever option they elected at the time of their
16 retirement from the date of their retirement to the date of their death and the total amount they
17 would have received had they elected said option (c) from the date of their retirement. Any
18 retirement benefit provided to a surviving spouse pursuant to this paragraph shall be in lieu of,
19 and not in addition to, any benefits they may have otherwise received from the state retirement
20 board as the deceased member's beneficiary.